

January 09, 2020



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20926

EXPIRATION DATE: 2021-10-31

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Cold Box Express, Inc.
Arab, AL

2. PURPOSE AND LIMITATION:

This special permit authorizes the use of certain temperature-controlled shipping containers containing lithium ion batteries as not subject to certain shipping paper, training, and emergency response requirements. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.

b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.

c. No party status will be granted to this special permit.

3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.

4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172, Subparts C, G, and H in that alternative shipping papers, training, and emergency response are authorized as specified herein.

5. BASIS: This special permit is based on the application of Cold Box Express, Inc. dated July 29, 2019 submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Lithium ion batteries contained in equipment <i>including lithium ion polymer batteries</i>	9	UN3481	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Lithium ion batteries must be packaged in equipment (i.e., a temperature-controlled shipping container) in accordance with 49 CFR 173.185(b).

b. OPERATIONAL CONTROLS:

(1) Lithium ion batteries must meet the requirements in 49 CFR 173.185(a).

(2) A maximum of four lithium ion batteries each with a watt-hour rating of up to 3,780 Wh and with an aggregate mass of no more than 88 kg may be packaged within the equipment.

(3) Each cover of the battery compartment must be secured with security hex bolts.

(4) The grantee must maintain ownership (i.e., own or lease) of the temperature-controlled shipping containers.

c. MARKING AND LABELING:

(1) The battery compartment panel must be marked "Do not open – Lithium ion batteries inside."

(2) The equipment containing the lithium ion batteries must be marked and labeled, as appropriate:

(i) "GROUND TRANSPORTATION ONLY".

(ii) "DOT-SP 20926".

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(iii) In accordance with Subparts D and E of 49 CFR Part 172 for lithium batteries contained in equipment.

(iv) A specific URL where the most recent revision of the special permit and the shipping instructions and emergency response information referenced in paragraph 7.d. can be viewed or downloaded.

d. SHIPPING DOCUMENT AND EMERGENCY RESPONSE INFORMATION:

(1) The grantee must create a shipping document containing the following information:

(i) The information in 49 CFR 172.202(a)(1) through (4).

(ii) A statement that the equipment contains four lithium ion batteries each and an indication of the watt-hour rating(s) and aggregate mass in accordance with 7.b.(2).

(iii) A statement that the shipment is subject to DOT-SP 20926.

(2) Each shipper must:

(i) Comply with 49 CFR 172.604 except that the emergency telephone number must be notated on the document referenced in paragraph 7.d.(1).

(ii) Comply with 49 CFR 172.602(a). The emergency response information must be notated on the document referenced in paragraph 7.d.(1).

(iii) Provide a copy of the document referenced in paragraph 7.d.(1) to the carrier.

(3) The carrier must make the document referenced in paragraph 7.d.(1) accessible in the same manner as a shipping paper under 49 CFR 177.817(e).

(4) The emergency response information must be maintained in accordance with 49 CFR 172.602(c).

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e. DETAILED PACKING AND SHIPPING INSTRUCTIONS:

(1) The grantee must provide lessees with detailed packing and shipping instructions.

(2) The grantee or lessee must provide these instructions to individuals preparing shipments under the terms of the special permit.

(3) Persons offering packages for transportation must comply with the detailed packing and shipping instructions.

f. Opening the battery compartment panel, removing a lithium ion battery or batteries, or installing a lithium ion battery or batteries within the equipment must be performed by the grantee.

g. Other hazardous materials transported within the temperature-controlled shipping container must be offered for and transported in accordance with the HMR and are not exempt from 49 CFR Part 172, Subparts C, G, and H.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a temperature-controlled shipping container covered by this special permit may reoffer it for transportation provided no modification or change is made to the temperature-controlled shipping container and it is reoffered for transportation in conformance with this special permit and the HMR, if applicable.

b. A person who is not a holder of this special permit, but leases a temperature-controlled shipping container covered by this special permit, may use the temperature-controlled shipping container provided it is offered for transportation in conformance with this special permit and the HMR, if applicable.

c. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

d. The grantee must maintain a list of lessees and upon request make this record available to DOT representatives or enforcement officials.

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9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit related to paragraphs 7.f. or 7.g. must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit and is not subject to paragraphs 7.f. or 7.g. must receive training on the requirements and conditions of this special permit. Each hazmat employee must receive this training at least once every three years.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term

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"exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: NICKS